

**IN THE UNITED STATES DISTRICT COURT IN THE
MIDDLE DISTRICT OF FLORIDA
Tampa Division**

DAVIS MATTHEW,
Plaintiff,

V.

SHERIFF CHRIS NOCCO, in his
official capacity as Sheriff of Pasco
County, and Pasco County Sheriff's
Office,
Defendant.

Case No. 8:24-cv-02907

Amended Complaint (42 U.S.C. §
1983)

AMENDED COMPLAINT FOR VIOLATION OF CIVIL RIGHTS

UNDER 42 U.S.C. § 1983

I. INTRODUCTION

Plaintiff, Matthew Aaron Davis, Pro Se, hereby files this Complaint against the Pasco County Sheriff's Department and elected official in his official capacity Sheriff Chris Nocco ("Defendant") for violations of Plaintiff's Fourth and Fourteenth Constitutional rights under 42 U.S.C. § 1983, and demands a trial by jury on all matters triable. The Plaintiff alleges as follows:

II. JURISDICTION AND VENUE

1. This Court has jurisdiction under 28 U.S.C. § 1331 because this action arises under the laws of the United States, specifically Title VII of the Civil Rights Act of 1964 (42 U.S.C. § 2000e et seq.) and/or 42 U.S.C. § 1983, as applicable.
2. This Court has jurisdiction under 28 U.S.C. § 1343 for civil rights violations and 28 U.S.C. § 1367 for any state law claims that form part of the same case or controversy.
3. Venue is proper in the United States District Court for the Middle District of Florida, Tampa Division, under 28 U.S.C. § 1391(b) because the events giving rise to this claim occurred in Pasco County, Florida, which falls within this Court's jurisdiction.

III. PARTIES

4. Plaintiff, Matthew Aaron Davis, at all times relevant to this Complaint, was a resident of Pasco County, Zephyrhills, Florida.

5. Defendant, Sheriff Chris Nocco, is the elected Sheriff of Pasco County and is responsible for the policies, training, and conduct of the Pasco County Sheriff's Office and its deputies.
6. Defendant, Pasco County Sheriff's Department, is a governmental entity responsible for law enforcement operations within Pasco County, Florida acting under color of State law and is sued in its official capacity.

IV. FACTUAL ALLEGATION

7. Plaintiff was born and raised in Upstate New York and has lived in Pasco County Florida for 17 years. Plaintiff is a former Pasco County Public Works First Responder (12403).
8. On December 10, 2020, Plaintiff was arrested on charges of domestic battery as documented in case number 512020MM004755MMAXES in the Sixth Judicial Circuit Court in and of Pasco County Florida. His children were placed with their maternal great grandparents while Plaintiff was incarcerated.
9. Plaintiff was released on bond on December 12, 2020. The Plaintiff went to pick up his children and bring them to their family home. Whereas Pasco County Sheriff enforced the continued separation of the Plaintiff and his children, when dispatched to the maternal great grandparents home.

10. On December 28, 2020, the Pasco County Sheriff's Department officially took the Plaintiffs children into custody of the state. As stated in the affidavit and petition for placement of the Plaintiffs children filed by the Department of Children and Families in the Sixth Judicial Circuit Court in and of Pasco County Florida.
11. On February 11, 2021, all criminal charges were officially dropped. As the State Attorney's Office declined to pursue the domestic battery charges, and “no information” was filed in case number 512020MM004755MMAXES filed at the Sixth Judicial Circuit Court in and of Pasco County Florida.
12. In March 2021 the Plaintiff was summoned to a child dependency hearing where reunification of the family was denied as the Plaintiff was charged with “failure to protect from domestic violence” by Department of Children and Families that the Pasco County Sheriff enforced.
13. Despite the dismissal of all criminal charges of domestic battery and no subsequent findings of abuse or neglect, Plaintiff has not regained custody of his children, that he still retains parental rights too. The Defendant has failed to return the children to Plaintiff's care and have enforced the separation of familia ties, thereby infringing upon Plaintiff's fundamental rights as a parent and violating the Constitutional rights of the Plaintiffs children and parent (Plaintiff) alike.

V. CLAIMS FOR RELIEF

Count I: Violation of Procedural Due Process Rights under the Fourteenth Amendment

14. Plaintiff realleges and incorporates by reference paragraphs 1 through 12 as though fully set forth herein.
15. The Fourteenth Amendment to the United States Constitution protects individuals from state actions that deprive them of life, liberty, or property without due process of law.
16. Plaintiff's fundamental right to the care, custody, and management of his children was infringed upon when Defendant removed the children from his custody without providing adequate procedural safeguards.
17. Defendant's actions, taken under color of state law, deprived Plaintiff of his constitutional rights without affording him the due process guaranteed by the Fourteenth Amendment.
18. As a direct and proximate result of Defendant's unlawful conduct, Plaintiff has suffered and continues to suffer harm, including the loss of familial association, mental anguish and emotional distress.

19. Defendant conduct was willful, wanton, and in reckless disregard of Plaintiff's constitutional rights, entitling Plaintiff to compensatory and punitive damages.

Count II: Violation of Substantive Due Process Rights under the Fourteenth Amendment

20. Plaintiff realleges and incorporates by reference paragraphs 1 through 12 as though fully set forth herein.

21. The Fourteenth Amendment also protects against arbitrary and capricious state actions that interfere with the parent-child relationship.

22. Defendant's removal of Plaintiff's children, without sufficient tangible evidence or legal basis, shocks the conscience and constitutes an arbitrary interference with Plaintiff's substantive due process rights.

23. As a direct and proximate result of Defendant's unlawful conduct, Plaintiff has suffered and continues to suffer harm, including the loss of familial association, mental anguish and emotional distress.

24. Defendant(s)' conduct was willful, wanton, and in reckless disregard of Plaintiff's constitutional rights, entitling Plaintiff to compensatory and punitive damages.

Count III: Violation of Civil Rights under 42 U.S.C. § 1983

25. Plaintiff realleges and incorporates by reference paragraphs 1 through 12 as though fully set forth herein.
26. 42 U.S.C. § 1983 provides a cause of action against any person who, under color of state law, deprives another of rights, privileges, or immunities secured by the Constitution and laws.
27. Defendant, acting under color of state law, deprived Plaintiff of his constitutional rights by removing his children from his custody without due process and by failing to return them after the criminal charges were dropped.
28. As a direct and proximate result of Defendant's unlawful conduct, Plaintiff has suffered and continues to suffer harm, including the loss of familial association, mental anguish and emotional distress.
29. Defendant conduct was willful, wanton, and in reckless disregard of Plaintiff's constitutional rights, entitling Plaintiff to compensatory and punitive damages.

Count IV: Violation of Fourth Amendment

30. Plaintiff realleges and incorporates by reference paragraphs 1 through 12 as though fully set forth here in.

31. False arrest occurs when a person is unlawfully restrained against their will without legal justification.

32. The arrest of Plaintiff was without a valid warrant and/or without probable cause, violating Plaintiff's Fourth Amendment rights under the U.S. Constitution and protections under State Law,

33. Since the State Attorney declined to prosecute, this confirms that no legal basis existed for the arrest, further substantiating Plaintiff's claim.

34. As a direct and proximate result of Defendant's unlawful conduct, Plaintiff has suffered and continues to suffer harm, including the loss of familial association, loss of reputation, mental anguish and emotional distress.

35. Defendant conduct was willful, wanton, and in reckless disregard of Plaintiff's constitutional rights, entitling Plaintiff to compensatory and punitive damages.

Count V: Violation 42 U.S.C. § 1983 - Fourth and Fourteenth Amendments

36. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

37. At all relevant times, Defendant, acting under color of state law, unlawfully detained and arrested Plaintiff without probable cause, in violation of

Plaintiff's Fourth and Fourteenth Amendment rights under the U.S. Constitution.

38. On or about December 10, 2020, Plaintiff was wrongfully arrested by Defendant in Pasco County, Florida, without a valid warrant, lawful justification, or probable cause.

39. Plaintiff was held in custody for two (2) days before being released, during which time Plaintiff suffered emotional distress, humiliation, loss of liberty, and other damages.

40. The false arrest and imprisonment were intentional, reckless, and/or grossly negligent, directly causing harm to Plaintiff.

41. As a direct and proximate result of Defendant actions, Plaintiff has suffered damages including, but not limited to, emotional distress, reputational harm, financial losses, and legal costs.

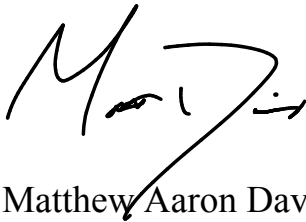
42. Defendant conduct was willful, wanton, and in reckless disregard of Plaintiff's constitutional rights, entitling Plaintiff to compensatory and punitive damages.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

- Award compensatory damages to Plaintiff for the harm suffered as a result of Defendant's actions in the amount of \$5 million.
- Award punitive damages to Plaintiff to deter Defendant and others from engaging in similar conduct;
- Grant Plaintiff's children immediate return to his custody;
- Award Plaintiff's reasonable attorneys' fees and costs incurred in bringing this action;
- Grant such other and further relief as the Court deems just and proper.

Respectfully submitted, on this 28th day of March in year 2025.

A handwritten signature in black ink, appearing to read 'Matthew A. Davis', with a stylized flourish at the end.

Matthew Aaron Davis
4538 Charter St.
Zephyrhills, FL. 33541
656-212-3599
DavisMatthewA@gmail.com

**IN THE UNITED STATES FEDERAL COURT IN THE
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Tampa Division

DAVIS, MATTHEW

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SHERIFF CHRIS NOCCO, in his
official capacity as Sheriff of Pasco
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Certificate of Service

CERTIFICATE OF SERVICE

I, Matthew Aaron Davis, hereby certify that on this 28th day of March year 2025,

I served a true and correct copy of the following documents:

- Amended Complaint under Title 42 U.S.C. statue 1983.
- Certificate of Service

Additionally, I certify that the aforementioned documents have been electronically filed with the Clerk of Court for the United States District Court, Middle District of Florida, via the Clerk of Court, which will send a notice of electronic filing to all

counsel of record. I declare under penalty of perjury, under the laws of the United States of America, that the foregoing is true and correct.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Matthew Davis', with a stylized flourish at the end.

Matthew Aaron Davis
4538 Charter St.
Zephyrhills, FL 33542
Phone: 655-212-3599
Email: DavisMatthewA2024@gmail.com

Date: March 28, 2025